

OPINION

I prosecuted Duke Cunningham and Duncan Hunter. Trump's pardons of them are shameful.

Two of the most shameful pardons by President Donald Trump were for disgraced former congressmen Randy "Duke" Cunningham and Duncan D. Hunter. I ought to know: I prosecuted both men.



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On December 3, 2019, Phil Halpern, Assistant United States Attorney spoke with news reporters just outside Federal Court following Congressman Duncan Hunter's guilty plea

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By **PHILLIP HALPERN**

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In the waning days of his presidency, Donald Trump reminded us that he has always been, and always will be, only about what this country can do for him. His final act of narcissism consisted of a slew of odious political pardons, a number of which were indirectly tied to the jurors in his upcoming impeachment trial in the U.S. Senate. Two of the most shameful pardons were for disgraced former congressmen Randy "Duke" Cunningham and Duncan D. Hunter.

I ought to know: I prosecuted both men.

Randy "Duke" Cunningham was a celebrity: the most famous naval pilot since World War II, the only Navy ace during the Vietnam War, a TOPGUN instructor and a recipient of the Navy Cross. Cunningham's campaign for Congress, however, was based not on celebrity, but integrity. He claimed to be a law-and-order candidate who would be free from scandal. But when it came to ethics, Cunningham proved to be more of a loose cannon than a top gun.

In a chilling harbinger of today's most irresponsible political rhetoric, Cunningham suggested after being elected that the Democratic House leadership should be "lined up and shot." He also repeatedly stuck his foot in his mouth, made obscene gestures and disparaged gay people on the floor of the House. The parallels between Duke and Donald are striking.

Everyone from Putin to the Saudi royal family to disgraced former Congressman Newt Gingrich cracked Trump's code long ago: MAGA really meant Make America Grovel Again — at the feet of a Trump monarchy. So they kissed his ring with praise, money and political support — and Trump returned these favors.

Cunningham was more of a Trump Lite, but as a member of the powerful House Appropriations Committee, he could obtain "earmarks," awarding millions of dollars to government contractors — all without competitive bidding. He quickly became the new best friend of every defense contractor in town. Rich contractors soon began plying Cunningham with a dazzling array of bribes.

Unlike Trump, Cunningham was not backed by an army of revisionists, false conspiracy theorists and a major news network dedicated to obscuring his crimes. He secretly used cash bribes to purchase a Rancho Santa Fe estate, and called on his new buddies to furnish it with 18th-century French armoires, Louis Phillippe period commodes (yes, old toilets) and exquisite Persian rugs. He lived aboard a defense contractor's luxury yacht, drove a gifted vintage Rolls, enjoyed \$1,000-a-night hotel suites, and sipped champagne in hot tubs with hookers.

In return for over \$2.4 million in bribes, Cunningham diverted more than \$100 million in taxpayers' money to his conspirators — much like Trump would years later. In a particularly reprehensible act, Cunningham diverted millions of dollars from the war on terrorism to a document-scanning scam that benefited his cronies but not his country.

Like Trump, but on a much smaller scale, Duncan D. Hunter was born into a life of privilege. The son of a congressman, Hunter was provided with every advantage. At age 32, he used his family connections to secure his father's congressional seat. Like Cunningham, he ran as a politician with integrity.

Read more opinions on the pardoning of Duke Cunningham:

After assuming office, though, Hunter and his wife embezzled more than \$250,000 from his campaign. He used the stolen funds to fuel a lavish lifestyle, including thousands of dollars for trysts with mistresses. He brazenly disguised many of these shady purchases — labeling one as a trip to wounded warriors and calling a \$14,000 family vacation to Italy a military-facility inspection.

Although all this graft was less profitable than Cunningham’s bribes, Hunter’s conduct was equally offensive. Despite eventually admitting his guilt, Hunter initially took a page out of Donald Trump’s totalitarian playbook. To fool voters, he repeatedly attacked the FBI, the Department of Justice, the judicial system and my fellow prosecutors.

Rather than admit his guilt and resign his seat when originally charged, Hunter — like Trump — chose to lie to the people who were his constituents — not once, but countless times. He disingenuously griped about fake news and witch hunts, while deploying “deep state” conspiracy tropes to con voters into electing a soon-to-be convict. Because of his duplicity, more than 700,000 voters were robbed of their right to representation. This is not conjecture or philosophical debate; it is fact.

No one should be surprised that the most corrupt president in history has chosen to pardon the most corrupt congressmen in memory. Trump, Cunningham and Hunter laughably all claim to be patriots. They do, however, all share one other thing in common: the distinctly un-American belief that they are above the laws they swore to uphold.

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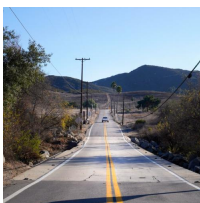
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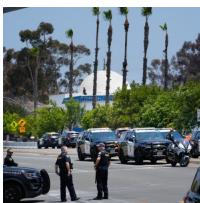
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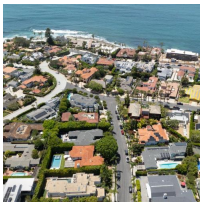
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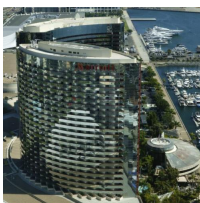
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